

Political Organization and Social Control : Band, tribe, chiefdom, kingdom and state; concepts of power, authority and legitimacy; social control, law and justice in simple Societies.
(Unit 4 , Paper I)

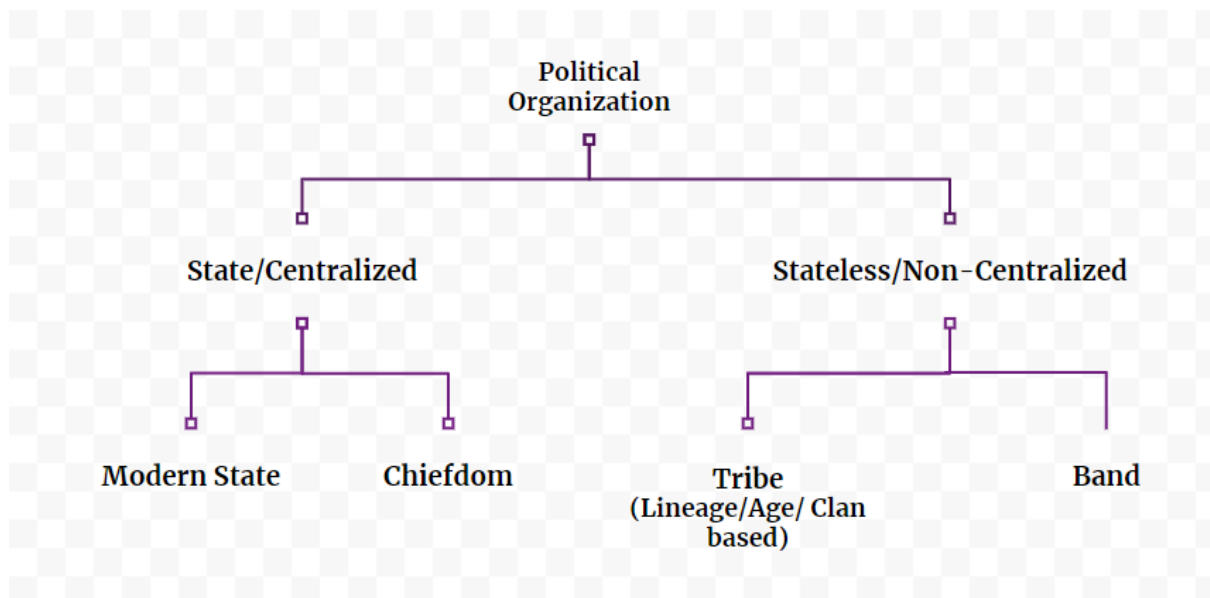
Political Anthropology studies the science of politics, regarding man as *homo politicus* and tries to identify characteristics common to all political organisations.

POLITICAL ORGANISATION

Political organisations are those institutions and/or mechanisms (formal and informal) which perform various activities concerning decision making and conflict resolution in order to create and maintain social order and to cope with social disorder.

Usually when we hear the word politics or political life, we think of political parties, elections, government, parliament, assembly or panchayat, police, judiciary, several specialised political offices, executive, army, and external political dealings etc.

However, in many societies, the political sphere is devoid of formal institutions and specialised functionaries. The major argument in the study of political organisations is that politics cannot be isolated from other subsystems of a society. Here we try to understand how power and law are put to use in socio-cultural environments.



From : *African Political Systems* (Pritchard and Fortes , 1941)

Political organisations have several features:

- Recruitment principles: Criteria for determining admission to the unit.
- Perpetuity: Assumption that the group will continue to exist indefinitely.

- Identity markers: Particular characteristics that distinguish it from others, such as costume, membership card, or title.
- Internal organisation: An orderly arrangement of members in relation to each other.
- Procedures: Prescribed rules and practices for behaviour of group members.
- Autonomy: Ability to regulate its own affairs.

According to anthropologist **Elman Service** , most societies can be classified into four principal types of political organisations: **bands, tribes, chiefdoms, and states**.

Type of Organization	Highest Level of Political Integration	Specialization of Political Officials	Predominant Mode of Subsistence	Community Size and Population Density	Social Differentiation	Major Form of Distribution
Band	Local group or band	Little or none; informal leadership	Foraging or food collecting	Very small communities; very low density	Egalitarian	Mostly reciprocity
Tribe	Sometimes multilocal group	Little or none; informal leadership	Extensive (shifting) agriculture and/or herding	Small communities; low density	Egalitarian	Mostly reciprocity
Chiefdom	Multilocal group	Some	Extensive or intensive agriculture and/or herding	Large communities; medium density	Rank	Reciprocity and redistribution
State	Multilocal group; often entire language group	Much	Intensive agriculture and herding	Cities and towns; high density	Class and caste	Mostly market exchange

From : Ember and Ember , 14th Edition

Although Service's classification does not fit for all societies, it is a useful way to show how societies vary in trying to create and maintain social order. We often use the present tense in our discussion, because that is the convention in ethnographic writing, but the reader should remember that most societies that used to be organised at the band, tribe, or chiefdom level are now incorporated into larger political entities. With a handful of exceptions, there are no politically autonomous bands or tribes or chiefdoms in the world any more.

Difference between State and Stateless Political Systems:

Parameter	Stateless system	State system
Nature of Society	Mostly Egalitarian, Homogenous with mechanical solidarity	Mostly Stratified, Heterogenous put together by organic solidarity
Territory	No strict territory , mostly nomads	Strict sense of territory, mostly lead sedentary and settled life
Locus of Authority	Majorly absent but the eldest or most skilled individual may hold some authority	Well defined centre of authority at the top
Major Occupation	Hunting & Gathering , Pastoralism and horticulture	Agriculture and Industrial activity

NON-CENTRALIZED POLITICAL ORGANISATIONS

1. Band: Band is the form of political organisation found among foragers and hunters comprising anywhere between twenty people and a few hundred people, who are related through kinship. Because foraging has been the most long-standing form of political organisation, these units come together at certain times of the year, depending upon their foraging patterns and ritual schedule.

Band membership is flexible. If a person has a serious disagreement with another person, one option is to leave that band and join another. Leadership is informal, and no one person is named as a permanent leader. Depending on events, such as organising the group to relocate or to send people out to hunt, a particular person may come to the fore as a leader for that time. This is usually someone whose advice and knowledge about the task are especially respected.

There is no social stratification between leaders and followers. A band leader is the “first among equals”. Band leaders have limited authority or influence, but no power. They cannot enforce their opinions. Social levelling mechanisms prevent anyone from accumulating much authority or influence. Political activity in bands involves mainly decision making about migration, food distribution, and resolution of interpersonal conflicts. External conflicts between groups are rare because the territories of different bands are widely separated and the population density is low.

The band level organisation barely qualifies as a form of political organisation because groups are flexible, leadership is ephemeral, and there are no signs or emblems of political affiliation. Some anthropologists argue that “real” politics did not exist in undisturbed band societies. **The Guayaki (Amazon basin), the Semang (Malaya peninsula), Inuit Eskimo, the Kung (Africa), the Cholanaikans (Kerala), Andaman tribes are some examples of Band organisation.**

This least complex of political structures may be further subdivided into patrilocal, composite, and anomalous bands. The patrilocal type is based on band exogamy and a marriage rule that the woman lives with her husband’s group. This type was so widespread that **Elman Service (1962)** regarded it as “almost an inevitable kind of organisation.” Indeed, it has the advantage of band stability, because each group is constantly replenished over time by new members coming in from out-side; but it also is capable of forming wide-ranging alliances through marriage and possesses considerable flexibility. The composite band was viewed by Service as the result of the collapse of originally patrilocal structures that were rapidly depopulated from disease and war after having come in contact with civilization.

2. Tribe/ Tribal organisations: Tribal societies are equal to band in their egalitarianism, lack of fixed authority, no hierarchy but difference is that tribal societies are food producers. They are marked with a large population and sedentary life. Pan tribal associations have potential to unite all members together (Pan-tribal Sodalities). Once threat recedes members break to self-sufficient groups. **They can be further subdivided into - clan based , lineage based , age-set based and association based organisations.**

→ **Clan based political organisation:** is one form of tribal organisation found in many societies. In many tribal societies each clan serves as the seat of political authority. In some tribal societies, clan elders form a council that acts within the tribe to settle disputes or acts for the tribe in dealing with outsiders. Among the **Winnebago red Indians of Wisconsin**, there are 12 clans, each with specific political functions. The tribal chief comes from the thunderbird clan. An important function of the thunderbird clan is the preservation of peace in the tribe. The warrior clan as its name implies, provides war leadership. The beat clan supplies the village policemen and the hunt policemen. The buffalo clan provides the camp carrier and aide de camp for the chief. The wolf, water spirit and elk clans have lesser political tasks.

→ **Lineage based political organisation:** is similar to the clan based but less extensive and relatively rare. The horticultural **Tiv of Nigeria** and pastoral **Nuer of Sudan** are typical examples of lineage based political organisation. Among the

Nuer and Tiv , Lineages are subdivided into smaller segments. Such segments are segmentary lineages.

The Nuer, for example, is split into a number of lineages. The lineage is thus a maximal lineage. Each maximal lineage is divided into many minimal lineages. The minimal lineage contains 3 to 5 generations and is the basic permanent descent group that functions in day to day activities. Members of a minimal lineage live in the same village and refer to each other as closest relatives. The minimal lineage is politically independent and there is no formal or central leadership above this level. In a strict sense Nuer do not have laws. There are only conventional compensations for damage, adultery, loss of limb, death, etc. Judicial and executive functions are not invested in any person or council among Nuer. One way of setting disputes is to use the **Leopard skin chief** as a mediator. The relations between the antagonistic lineages, as among the classic Nuer studied by **Evans Pritchard ('The Nuer', 1940)**, are maintained by **Blood Feud**. The common principle is tit for tat. If the member of one lineage has killed one of the other lineage, the lineage has all the right to kill a man who committed the act- it is not just revenge but to *restore the balance* – if disputes become out of control – Leopard skin chief acts as mediator

The Oraon's lineage is locally known as Khunt. A lineage is further subdivided into a number of families. All members of a family are governed by their father. The member of the lineage group of **Gond** observes rites in common. In each lineage there is a specialist who recollects the genealogy of a member which proves to be a uniting and inspiring factor for the person concerned.

→ **Age Grade Based Political Organization:** occurs in some tribal societies of Africa, USA and Oceania. Each age grade is an organised group of people with membership on the basis of age. People of the same age belong to one age group. Each age grade cuts across kinship and territorial lines because people of the same age in different villages belong to the same age grade. Each tribe may be divided into 2 or more age grades and each age grade may be associated with specific political function. **The Kipsingis of East Africa** serve as an example of age grade based political organisation. The Kipsingis males are divided into 2 age grades – warriors and senior elders. The warrior defends the country and enriches the tribe by begetting many children and capturing many cattle that belonged to other tribes. When warriors reach the end of age grade, they pass into the age grade of senior elders. The senior has to fight in defensive battles, have to serve as chiefs of staff organising the army, have to preside in the council of elders to resolve disputes and have to preside at initiation ceremonies.

Thus, age grade cuts across kinship and territorial lines and serves different political functions. Age grade based political system provides the following benefits: smooth transformation from lower to higher status, good cooperation in members of the same age set and it provides for a standing army.

Among **Masai**, we find the society divided into childhood, junior warriorhood, senior warriorhood, junior elderhood and senior elderhood. Initiation ceremony from childhood to junior warriorhood takes place every five years. Later promotion is automatic. Ceremony of initiation involves torturous rituals and if someone due to fear escapes, he cannot be promoted in social hierarchy. He would remain a child for a lifetime.

- **Association Based Political Organization** : Common interest associations such as secret societies or tribal fraternities and military clubs can also form the base for political organisation of tribal societies. The **Cheyenne warrior club** serves as an example of association based political organisation. The Cheyenne lived in bands of varying sizes. Among the Cheyenne, for instance, there were seven of these military societies. A boy might be invited to join one of these clubs when he achieved warrior status, whereupon he became familiar with the society's particular insignia, songs, and rituals. Beyond military functions, the warrior societies also had ceremonial and social functions. The Cheyenne warriors' daily tasks consisted of overseeing activities in the village, protecting families on the move to the next camping site, and enforcing buffalo hunting rules. In addition, each warrior club had its own repertoire of dances, performed on special ceremonial occasions. Since each Cheyenne band had identical military societies bearing identical names, the societies served to integrate the entire tribe for military and political purposes.
- **Melanesian Big Man based Political Organization**: Throughout Melanesia, the big man leader combines a small amount of interest in his tribe's welfare with a great deal of self-interested cunning calculation for his own personal gain. His authority is personal, he has no organisation and he is not elected to any office. His status is based on acts that he has done which raise him above most of the other members of his tribe and attract to him a band of loyal followers. The Big Man leader can be illustrated by the **Kapauku of West New Guinea**. The bigman is called "Tonowi" – a rich man. He is a self-made leader who gains power through personal achievements rather than from holding office. He begins his career as the leader of a small, localised kin group through a series of public actions such as generous loans, the big man attracts followers within the community. He skillfully builds up his capital and increases the number of wives. Since women take care of the pig herds. He distributes his wealth in ways that build his reputation as a rich man by

sponsoring feasts, paying subsidies to military allies and putting bride wealth for young men seeking wives.

CENTRALISED POLITICAL ORGANISATION

1. Chiefdoms

It is a centralised political system with authority vested in formal, usually hereditary, offices or titles. With respect to social integration, the chiefdom level transcends the tribal level in two major ways: (1) it has a higher population density made possible by more efficient productivity; and (2) it is more complex, with some form of centralized authority. Chiefdom is a form of political organisation with a central leader encompassing several smaller political units. Chiefdoms have larger populations, often numbering in thousands, and are more centralised and socially complex. Hereditary systems of social ranking and economic stratification are found in many chiefdoms, with social divisions existing between the chiefly lineage or lineages and non-chiefly groups. Chiefs and their descendants are considered superior to commoners, and intermarriage between two strata is forbidden. Chiefs are expected to be generous, but they may have a more luxurious lifestyle than the rest of the people. The chiefship as “office” must be filled at all times. The chief may also amass a great amount of personal wealth and pass it on to offspring. Land, cattle, and luxury goods produced by specialists can be collected by the chief and become part of the power base. Chiefdoms have a recognized hierarchy consisting of major and minor authorities who control major and minor subdivisions. Such an arrangement is, in effect, a chain of command, linking leaders at every level. It serves to bind groups in the heartland to the chief’s headquarters, be it a mud and dung hut or a marble palace. Although leaders of chiefdoms are almost always men, in some cultures a politically astute wife, sister, or single daughter of a deceased male chief could inherit such a powerful position as well.

Criteria for becoming a chief are: ascribed criteria (birth in a chiefly lineage, or being the first son or daughter of the chief), personal leadership skills, charisma, and accumulated wealth. Chiefdoms have existed in most parts of the world. Anthropologists are interested in how and why chiefdom systems evolved as an intermediary unit between tribes and states and what are its political implications. Several political strategies support the expansion of power in chiefdoms: controlling more internal and external wealth and giving feasts and gift exchanges that create debt ties; improving local production systems; applying force internally; forging stronger and wider external ties; and controlling ideological legitimacy.

An expanded version of the chiefdom occurs when several chiefdoms are joined in a confederacy headed by chief of chiefs, “big chief”, or paramount chief. Many prominent confederacies have existed- for example in North America, the **Iroquois league of five nations** that stretched across New York State, the Cherokee of Tennessee, and the Algonquins who dominated the Chesapeake region in present-day Virginia and Maryland.

2. States

State is a form of political organisation with a bureaucracy and diversified governmental institutions with varying degrees of centralised control. The state is now the form of political organisation in which all people live. Band organisations, tribes, and chiefdoms exist, but they are incorporated within state structures. States define citizenship and its rights and responsibilities. In complex societies, since early times, not all residents were granted equal rights of citizens. States maintain standing armies and police (as opposed to part-time forces). States keep track of the number, age, gender, location, and wealth of their citizens through census systems that are regularly updated. A census allows the state to maintain formal taxation systems, military recruitment, and policy planning, including population settlement, immigration quotas, and social benefits such as old-age pensions. States have the power to extract resources from citizens through taxation. All political organisations are supported by contributions of the members, but variations occur in the rate of contributions expected, the form in which they are paid, and the return that members get in terms of services. In bands, people voluntarily give time or labour for “public projects” such as a group hunt or a planned move. Public finance in states is based on formal taxation that takes many forms. In-kind taxation is a system of mandatory, non-cash contributions to the state. For example, the **Inca state** used a labour tax, to finance public works such as roads and monuments and to provide agricultural labour on state lands.

Symbols of State Power: Religious beliefs and symbols are often closely tied to the power of state leadership: the ruler may be considered a deity or part deity, or a high priest of the state religion, or closely linked with the high priest, who serves as advisor. Architecture and urban planning remind the populace of the power of the state. In pre-Hispanic Mexico, the central plaza of city-states, such as Tenochtitlan was symbolically equivalent to the centre of the cosmos and was thus the locale of greatest significance. The most important temples and the residence of the head of state were located around the plaza. Other houses and structures, in decreasing order of status, were located on avenues in decreasing proximity to the centre. The grandness and individual character of the leader’s residence indicate power, as do monuments-especially tombs to past leaders and heroes or heroines. There are various theories of state formation:

1. **Voluntaristic theory of state formation by Gordon Childe:** The theory that stable systems of state government arose because people voluntarily surrendered some of their autonomy to the state in exchange for certain benefits.
2. **Coercive theory of state formation by Robert Carneiro :** The argument that the state came into existence as a direct result of warfare.

CONCEPT OF POWER, AUTHORITY AND LEGITIMACY

A society as defined in oxford dictionary is the community of people living in a particular country or region and having shared customs, laws, and organisations. This framework of society is shaped in a pyramidal system where a particular person or faction takes care of the regulatory affairs of the society. On a broader scale a country run by a president or prime minister is an aggregate of different societies. So, for the organisation of society there should be people with authority, power and leadership. Sociologically authority and power are loosely differentiated and have been found to be overlapping mostly. By definition, power can be understood as the capability of a person to do certain things whereas authority is power or right of a person to make decisions for an organisation.

POWER AND AUTHORITY

Power is the universal aspect of social interaction. It plays a very important role in shaping the relationship among the members of a social group. Differences in relative power of the participants to influence one another are characteristics to all forms of social interactions.

As per **Sheriff & Sheriff** – “Power denotes the relative weights of behaviour by members in a group structure”.

The concept of power is very broad, as the definitions reveal, and implies the ability of a person to get his wishes carried out. It simply means the capacity or ability of a person to influence another. However, “influence” by a strict sense of the term does not always imply exercise of power. The most important component of power is the ability to determine the behaviour of others in accordance with one’s wishes despite resistance or opposition. Power is a characteristic phenomenon both in a democratic as well as authoritarian system. There is a submission of people to the overall power structure in both these societies. Once established, every power structure tends to be strong and continues to thrive because of habit or inertia as well as indoctrination and propaganda.

On the other hand Authority is the institutional power or legitimate power.

Thus, authority is the right to take certain actions, including the decision to issue commands. It represents the set of rules and procedures, traditions and norms that are regarded as binding when they are applied within a given social unit. A leader of a military coup for instance may have power but little authority, whereas an elected leader has authority and may have considerable power.

Difference between Power and Authority:

- Authority is always legitimate whereas power may be both legitimate and illegitimate.
- Authority is based on consent whereas power is based on force.
- By nature, authority is more democratic than power as it is always legitimate and based on popular support.

- Authority is the ability of man to get his proposals accepted but power is the capacity of man to change the behaviour of others.

SOCIAL CONTROL

Any society must have harmony and order. Where there is no harmony or order, the society actually does not exist because society is a harmonious organisation of human relationships. Society therefore in order to exist and progress has to exercise a certain control over its members since any marked deviation from the established ways is considered a threat to its welfare. Such control is called “Social Control”. It is the influence which the society exerts upon its members for the purpose of providing the welfare of the group as a whole. Directing human behaviour into a socially desired end, so that individual and collective role expectation and fulfillments may promote social continuity and stability.

NATURE OF SOCIAL CONTROL

Social control is an influence- The influence may be exerted through public opinion, coercion, social suggestion, religion, appeal to reason, or any other method. The influence is exercised by society- it means that a group is better able to exercise influence over the individual than a single individual. This group may be family, the church, the state, the club, the school, trade union, etc. The effectiveness of influence however depends upon variable factors. Sometimes the family may exercise more effective influence than the state. The influence is exercised for promoting the welfare of the group as a whole. The person is influenced to act in the interest of others rather than in accordance with his own individual interests. Social control is exercised for some specific end in view. The aim is always the welfare of the whole.

SOCIAL CONTROL AND SOCIALISATION

During the process of socialisation, the process of social control is also in operation. Through socialisation, social control becomes ipso- facto effective. Man, from birth to death is undergoing the process of socialisation and his behaviour is controlled in numerous ways. The customs regulate the birth and death ceremonies. The diet, the dress, the manner of speech, the marriage, the education and a host of other matters are controlled by customs. In order to maintain the social order, there are definite procedures in society. As a matter of fact, societies depend heavily upon effective socialisation to internalise social norms and values as the individual's guides and motives to action. Through socialisation, societies aim to control the behaviour of its members unconsciously.

NEED FOR SOCIAL CONTROL

Social solidarity is essential for the existence of society. No two persons are alike in nature, ideas, attitudes and interests. Every individual is a separate personality. There are

cultural differences among the individuals. Some worship an idol, others do not. Some eat meat, others are vegetarian. Some are orthodox, others are modern. As a matter of fact society is a heterogeneous organisation. If every individual is allowed unrestricted freedom to act and behave, it may create social disorder. For an orderly social life social control is necessary. The aim of social control is to bring out conformity, solidarity and continuity of a particular group or society. Social control is necessary for the following reasons:

- To maintain order and hinder deviant behaviour.
- To establish social unity – by uniformity of behaviour.
- To regulate or control individual behaviour.
- To provide social sanction.
- To check cultural maladjustment.

MEANS OF SOCIAL CONTROL

Most sociologists have classified the means of social control into types such as informal means and formal means. These are traced out below:

1. INFORMAL MEANS

The informal means of social control grow themselves in society. No special agency is required to create them. For example : Hindu women usually do not smoke. One can marry only in one's caste. The children should respect their parents. All this is due to informal social control. It is exercised through custom, tradition, folkways, mores, religion, etc. Informal means of social control are very powerful particularly in primary groups. No man wants to suffer loss of prestige. He does not want to become the target of ridicule.

MAJOR MEANS OF INFORMAL CONTROL

a. Belief: It is a conviction that a particular thing is true. Beliefs influence man's behaviour in society. They define the purposes and interests for the individual and control his choice of means so that the purposes of the group may be advanced or at least not hindered. Beliefs need not be true. For example Among the **Azande of the Sudan**, people who think they have been bewitched may consult an oracle, who, after performing the appropriate mystical rites, then may establish or confirm the identity of the offending witch. Confronted with this evidence, the witch will usually agree to cooperate in order to avoid any additional trouble. Should the victim die, the relatives of the deceased may choose to make magic against the witch, ultimately accepting the death of some villager as evidence of both guilt and the efficacy of their magic. For the Azande, witchcraft provides not only a sanction against antisocial behaviour but also a means of dealing with natural hostilities and death. No one wishes to be thought of as a witch, and surely no one wishes to be victimised by one. By institutionalising their emotional responses, the Azande successfully maintain social order.

b. Social Suggestion: Social suggestions are also powerful means of social control.

Suggestion is the indirect communication of ideas, feelings and other mental states. Such communication may be through various methods. The first method is putting the life examples of great men. We build monuments in memory of great men. We place their life ideals before people.

c. Ideologies: ideology is a theory of social life which interprets social realities from the point of view of ideals to prove their correctness and to justify their ideals. Leninism, Gandhism and Fascism are ideologies which have analysed social realities and laid down an ideal before people.

d. Folkways: Folkways are the recognized mode of behaviour which arise automatically with a group. They are the behaviour patterns of everyday life which arise spontaneously and unconsciously in a group. They are in general the habits of individuals and are common to a group. They are socially approved. They have some degree of tradition sanction.

e. Mores: Mores are those folkways which are considered by the group to be of great significance, rather indispensable to its welfare. The mores relate to the fundamental needs of society more directly than do the folkways. They express the group's sense of what is right and conducive to social welfare. They imply a value judgement about the folkways. Mores mould human behaviour. They restrain an individual from doing acts considered as wrong by his group. Mores are also informal rules that are not written, but, when violated, result in severe punishments and social sanction upon the individuals, such as social and religious exclusions.

f. Customs: Customs are the long-established habits and usages of the people. They are those folkways and mores which have persisted for a very long time and have passed down from one generation to another. They arise spontaneously and gradually. There is no constituted authority to declare them, to apply them or to safeguard them. They are accepted by society. They are followed because they have been followed in the past.

g. Art and Literature: Art in its narrow sense includes painting, sculpture, architecture, music and dance. Literature includes poetry, drama and fiction. Both art and literature influence the imagination and exert control on human behaviour. The martial music of the military band arouses feelings of determination and strength. A classical dance creates in us an appreciation of our culture. The statue of Mahatma Gandhi teaches us the virtue of simple living and high thinking. A painting may arouse in us a feeling of sympathy, affection and hatred. There is always a close relationship between the art of a period and national life. The civilization of any specified time can be judged by an examination of its art. The Ajanta and Ellora caves give a vivid account of the ancient Hindu culture. An artist has been called an agent of civilization. Literature also influences human behaviour in society. We have 'good' literature and 'bad' literature. A good literature possesses an indefinable quality which makes it live through the ages. Ramayana, Bhagavad-Gita and Mahabharata are classical works of great social value. On the other hand, detective literature may have its effect on crime. Romantic literature may

make the readers passionate while religious literature may make them virtuous or superstitious. Rousseau in France hastened the French Revolution. Dickens changed the entire school system in Britain by writing David Copperfield and his other books. In this way both art and literature exert control through their influence on the imagination.

h. Humour and satire: Humour is also a means of social control. It assumes various forms, depending upon the situation and purpose. It often serves to relieve a tense situation. Sometimes it is used with a bad intention to deflate others without a reason. It is also used to gain a favourable response. Humour controls by supporting the sanctioned values of the society. Through cartoons, comics and repartee it can support the values of the society in a form that is light in spirit but effective in control.

Satire employs wit and scorn as indirect criticism of actions felt to be vicious and socially harmful. It exposes by ridiculing the falsity and danger of behaviour. Thereby it causes the people to give up their vicious and harmful action.

i. Public Opinion: The influence of public opinion as a means of social control is greater in simple societies. In a village the people are known to one another personally. It is difficult for a villager to act contrary to the public opinion of the village. Public opinion greatly influences our actions. For fear of public ridicule and criticism we do not indulge in immoral or anti-social activities. Every individual wants to win public praise and avoid public ridicule or criticism. The desire for recognition is a natural desire. We want to count for something in the eyes of our fellowmen. Human praise is the sweetest music. The greatest efforts of the human race are made to win public recognition or at least to avoid public ridicule. Thus, public opinion is one of the strongest forces influencing the behaviour of people.

2. FORMAL MEANS

a. LAW: It is the most important means of social control. Early societies depended upon informal means of social control but when societies grew in size and complexity, they were compelled to formulate rules and regulations which define the required types of behaviour and specify the penalties to be imposed upon those who violate them. Law is a body of rules enacted by legally authorised bodies and enforced by authorised agencies. It clearly defines rights, duties as well as the punishments for their violation. Modern societies are large in size. Their structure is complex and consisting of a number of groups, organisations, institutions and vested interests. Informal means of social control are no longer sufficient to maintain social order and harmony.

Anthropologists recognize several basic functions of law, in particular the following three: First, it defines relationships among society's members and marks out proper behaviour under specified circumstances. Knowledge of the law permits each person to know his or her rights and duties with respect to every other member of society. Second, law allocates the authority to employ coercion in the enforcement of sanctions. In societies with centralised political systems, such authority is generally vested in the government and its judiciary system. In societies that lack centralised political control,

the authority to employ force may be allocated directly to the injured party. Third, law functions to redefine social relations and to ensure social flexibility. As new situations arise, law must determine whether old rules and assumptions retain their validity and to what extent they must be altered. Law, if it is to operate efficiently, must allow room for change.

In modern society relationships are of a secondary nature. Security of life and property, as well as the systematic ordering of relationships make formalisation of rules necessary. Law prescribes uniform norms and penalties throughout a social system. The body of law in every state is being increased. What was in mores and customs earlier has now been formalised into a body of law.

b. Education: Along with law, the importance of education as a means of social control is being realised. Education is a process of socialisation. It prepares children for social living. It reforms the attitudes wrongly formed by the children already. Thus, a family may make the child superstitious, education will correct his beliefs and remove his prejudices. It teaches him the value of discipline, social cooperation, tolerance and sacrifice. It instils in him the qualities of honesty, fair play and a sense of right or wrong. The importance of education for creating the right social attitudes among the youth cannot be minimised.

c. Coercion: is the use of force to achieve a desired end. It may be violent or non-violent. It is the ultimate means of social control when all other means fail. Physical coercion may take the form of bodily injury, imprisonment and death penalty. Physical coercion is without doubt the lowest form of social control. If a society has to depend on external force, it shows its weakness rather than strength in social control.

LAW AND JUSTICE IN PRIMITIVE SOCIETIES

Malinowski defined law as the obligation of one person and the rightful claim of another sanctioned not by mere psychological motive but by a definite social machinery of binding force based upon mutual dependence. Law is a mechanism whose violation might bring punishment from designated authority. Law is an agency, the function of which is to maintain social order by the use of physical, economical or social force.

Majumdar and Madan are of the opinion that, “Law consists of a set of principles which permit the use of force to maintain political and social organisation within a territory.”

NATURE OF PRIMITIVE LAW

- It is based on Kinship bonds and therefore clan elders play important roles.
- It is backed by public opinion and morality
- It does not distinguish between public and private wrongs. A private wrong may bring calamity for the entire community. Thus, collective responsibility plays an important role.
- Breach of public opinion and moral laws amount to sin; the sinner has also to face supernatural punishment.

- There is limited civil law and more criminal law because of less pressure on land. The customs are clear.
- Intention has no importance in primitive law because of the concept of sin.

For stateless societies we use social sanctions. According to **Radcliffe Brown** a sanction is a reaction on the part of a society or of a considerable number of its members to a mode of behaviour which is thereby approved or disapproved. Approval of an act is a function of positive sanctions and its disapproval of negative sanctions.

In societies without formal legal institutions, such as courts of law, sanctions are often imposed directly by the wronged individual or group. Reaction is in a socially approved manner and in a form considered proportional to the injury. This may include ridiculing, duelling, injuring, seizing of property, or killing the offender or a member of his group.

Among the Eskimo, for example, the appropriate punishment for a man who steals another man's wife is to be ridiculed in a nasty song made up by the injured man. Social context, as well as the kind of offence, determines the type of sanction invoked: legal, religious, and moral sanctions can all operate. A breach of norms committed within a kin group may call for religious sanctions, although the same deed involving different kin groups would invoke jural sanctions.

C.W. Mills (1951) wrote: "The mere anticipation of probable sanctions (ranging from embarrassment to imprisonment) is often sufficient to restrain the behaviour in question"

A Sanction is an externalised social control designed to encourage conformity to social norms. In folk wisdom, it is known as the "carrot and the stick principle". When our actions meet normative expectations or conform to wider expectations, we are generally *rewarded* (or subject to a positive sanction); failure to meet such expectations leads to *punishment* (punishing the various forms of deviance) known as negative sanction.

Sanctions, in addition to functioning as a mechanism of social control, also serve to integrate a society, affirming social beliefs and restating their validity when breached. Operating within social groups of all sizes and involving a mix of cultural and social controls, sanctions may vary significantly within a given society, but they fall into one of two categories: positive or negative. Positive sanctions consist of incentives to conformity such as awards, titles, and recognition by one's neighbours. Negative sanctions consist of threats such as imprisonment, fines, corporal punishment, or ostracism from the community for violation of social norms.

For sanctions to be effective, they must be applied consistently, and they must be generally known among members of the society. Even if some individuals are not convinced of the advantages of social conformity, they are still more likely to obey society's rules than to accept the consequences of not doing so. Sanctions may also be

either formal or informal, depending on whether or not a legal statute is involved. In the United States, the man who goes shirtless in shorts to a church service may be subject to a variety of informal sanctions, ranging from disapproving glances from the clergy to the chuckling of other parishioners. If, however, he were to show up without any clothing at all, he would be subject to the formal negative sanction of arrest for indecent exposure. Only in the second instance would he have been guilty of breaking the law.

Formal sanctions, such as laws, are always organised, because they attempt to precisely and explicitly regulate people's behaviour, whether they are peacefully trading with others or confronting others on a battlefield. Other examples of organised sanctions include, on the positive side, military decorations and monetary rewards. On the negative side are loss of face, exclusion from social life and its privileges, seizure of property, imprisonment, and even bodily mutilation or death.

Informal sanctions emphasise cultural control and are diffuse in nature, involving spontaneous expressions of approval or disapproval by members of the group or community. They are, nonetheless, very effective in enforcing a large number of seemingly unimportant customs. Because most people want to be accepted, they are willing to acquiesce to the rules that govern dress, eating, and conversation, even in the absence of actual laws.

The most common and most widespread sanction is the threat of withdrawal of reciprocity. In simple societies where generalised reciprocity is a rule, threat of withdrawal of reciprocity is quite a powerful sanction.

RESOLUTION OF CONFLICT

Apart from formulation of policies, their administration, and their enforcement, political life also involves the resolution of conflict, which may be accomplished peacefully by avoidance, community action, mediation or the negotiation of compromises, apology, appeal to supernatural forces, or adjudication by a third party. The procedures used usually vary with degree of social complexity; decisions by third parties are more likely to exist in hierarchical societies. But peaceful solutions are not always possible, and disputes may erupt into violent conflicts. When violence occurs within a political unit in which disputes are usually settled peacefully, we call such violence crime, particularly when committed by an individual. When violence occurs between groups of people from separate political units- groups between which there is no procedure for settling disputes- we usually call such violence warfare. When violence occurs between subunits of a population that had been politically unified, we call it civil war.

Peaceful Resolution of Conflict

Most modern industrialised states have formal institutions and offices, such as police, district attorneys, courts, and penal systems, to deal with various types of disputes and conflicts. All these institutions generally operate according to codified laws- that are, a

set of explicit, usually written, rules stipulating what is permissible and what is not. Transgression of the law by individuals gives the state the right to take action against them. The state has monopoly on the legitimate use of force in the society, for it alone has the right to coerce subjects into agreement with regulations, customs, political edicts and procedures. Many societies lack such specialised offices and institutions for dealing with conflict. Yet, because all societies have peaceful, regularised ways of handling at least certain disputes, some anthropologists speak of the universality of law.

For, “anthropologically considered, law is merely one aspect of culture- the aspect which employs the force of organized society to regulate individual and group conduct and to prevent redress or punish deviations from prescribed social norms.” Law, then, whether informal as in simpler societies, provides a means of dealing peacefully with whatever conflicts develop. That does not mean that conflicts are always resolved peacefully. But that also does not mean that people cannot learn to resolve their conflicts peacefully. The fact that there are societies with little or no violent conflict means that it may be possible to learn from them; it may be possible to discover how to avoid violent outcomes of conflicts.

Avoidance

Violence can often be avoided if the parties to a dispute voluntarily avoid each other or are separated until emotions cool down. Anthropologists have frequently remarked that foragers are particularly likely to make use of this technique. People may move to other bands or move their dwellings to opposite ends of camp. Shifting horticulturalists may also split up when conflicts get too intense. Avoidance is obviously easier in societies, such as band societies, that are nomadic or semi nomadic and in which people have temporary dwellings. And avoidance is more feasible when people live independently and self-sufficiently (for example, in cities and suburbs). But even if conditions in such societies may make avoidance easier, we still need to know why some societies use avoidance more than confrontation as a way of resolving conflict.

Example: Among the **Andamanese** just after a marriage is fixed , the two parties avoid seeing each other and negotiate through a third person in order to not get involved in any disputes.

Community Action

Societies resort to various methods, to resolve disputes in an amicable way. One such way involves community action in simpler societies that lack powerful authoritarian leaders. **Among the Inuit**, disputes are frequently resolved through community action. The Inuit believe that spirits, particularly if displeased, can determine much of a person's fate. Consequently, people carry out their daily tasks within a complex system of taboos. This system is so extensive that the Inuit, at least in the past, may have had no need for formal set of laws. Nevertheless, conflicts do arise and needs to be resolved. Accordingly, principles act as guides to the community in settling trouble cases. An individual's failure

to heed a taboo or to follow the suggestions of a shaman leads to expulsion from the group, because the community cannot accept a risk to its livelihood.

Negotiation and Mediation

In many conflicts, the parties to a dispute may come to a settlement themselves by negotiation. There aren't necessarily any rules for how they will do so, but any solution is "good" if it restores peace. Sometimes an outsider or third party is used to help bring about a settlement between the disputants. We call it mediation when the outside party tries to help bring about a settlement, but that third party does not have the formal authority to force a settlement. Both negotiation and mediation are likely when the society is relatively egalitarian and it is important for people to get along. Among **Nuer of East Africa** disputes within the community can be settled with the help of an informal mediator called "the leopard skin chief".

Ritual Reconciliation-Apology

The desire to restore a harmonious relationship may also explain ceremonial apologies. An apology is based on deference- the guilty party shows obeisance and asks for forgiveness. Such ceremonies tend to occur in chiefdoms. Among the **Fijians of the South Pacific**, there is a strong ethic of harmony and mutual assistance, particularly within a village. When a person offends some one of higher status, the offended person and other villagers begin to avoid, and gossip about, the offender. If the offender is sensitive to village opinion, he or she will perform a ceremony of apology called **soro**. One of the meanings of soro is "surrender". In the ceremony the offender keeps her or his head bowed and remains silent while intermediary speaks, presents a token gift, and asks the offended person for forgiveness.

Oaths and Ordeals

Still another way of peacefully resolving disputes is through oaths and ordeals, both of which involve appeals to supernatural power. An oath is the act of calling upon a deity to bear witness to the truth of what one says. An ordeal is a means used to determine guilt or innocence by submitting the accused to dangerous or painful tests believed to be supernatural control.

Example: Among the **Malers** (Central India) an accused is brought before the "Jhanda Gossaiya" and is asked to touch a knife placed at the sacred centre and while touching the knife, he is asked to say- "I will die if I tell a lie" and thereafter he narrates the incident in detail. However, among the **Ho tribes of Jharkhand**, an oath is taken in the name of "Singa Bonga" or "Hatu Bonga". The **Santhals** utter "Dharam Dharam" before they narrate the incident. Sometimes the offenders is subjected to some torture before the declaration of the verdict of the panchayat. If the person escapes without injury, he is supposed to be not guilty. In some cases, the accused is asked to lick salt or fire. If he

suffers an injury he is believed to have committed the said crime. This is common among the tribes of all over India

Violent Resolutions of Conflict

People are likely to resort to violence when regular, effective alternative means of resolving a conflict are not available. Some societies consider violence between individuals to be appropriate under certain circumstances; which we generally do not consider, and call it crime. When violence occurs between political entities such as communities, districts, or nations, we call it warfare. The type of warfare, of course, varies in scope and complexity from society to society. Sometimes a distinction is made among feuding, raiding, and large-scale confrontations.

Feuding

Feuding is an example of how individual self-help may not lead to a peaceful resolution of conflict. Feuding is a state of recurring hostilities between families or groups of kin, usually motivated by a desire to avenge an offence- whether insult, injury, deprivation, or death- against a member of the group. The most common characteristic of the feud is that responsibility to avenge is carried by all members of the kin group. The killing of any member of the offender's group is considered an appropriate revenge, because the kin group as a whole is regarded as responsible. **Nicholas Gubser** told of a feud within Inuit community, caused by a husband's killing of his wife's lover that lasted for decades. Feuds are by no means limited to small-scale societies; they occur as frequently in societies with high levels of political organisation.

Raiding

Raiding is a short-term use of force, planned and organised, to realise a limited objective. This objective is usually the acquisition of goods, animals, or other forms of wealth belonging to another, often neighbouring community. Raiding is prevalent in pastoral societies, in which cattle, horses, camels, or other animals are prized and an individual's own herd can be augmented by theft. Raids are often organised by temporary leaders or coordinators whose authority may not last beyond planning and execution of the venture. Raiding may also be organised for the purpose of capturing persons either to marry or to keep as concubines or as slaves. Slavery has been practised in about 33 percent of the world's known societies, and war has been one way of obtaining slaves either to keep or to trade for other goods. Example: Among **Masai Mara** of Africa , bands usually raid each other's camps to steal cattle.

Large-scale Confrontations

Both feuding and raiding usually involve relatively small numbers of the persons and almost always an element of surprise. Because they are generally attacked without

warning, the victims are often unable to muster an immediate defence. Large-scale confrontations, in contrast, involve a large number of persons and planning by both sides of strategies of attack and defence. Large-scale warfare is usually practised among societies with intensive agriculture or industrialization. Only these societies possess a technology sufficiently advanced to support specialised armies, military leaders, strategies, and so on.

LAW VS CUSTOM

Malinowski defined law as the obligation of one person and the rightful claim of another sanctioned not by mere psychological motive but by a definite social machinery of binding force based upon mutual dependence. Law is a mechanism whose violation might bring punishment from designated authority. Law is an agency, the function of which is to maintain social order by the use of physical, economical or social force. Customs are the long-established habits and usages of the people. They are those folkways and mores which have persisted for a very long time and have passed down from one generation to another.

1. Law is a make; custom is a growth: Law is explicitly and deliberately made by the definite power of the state, whereas custom is a group procedure that has gradually emerged, without expressed enactment, without any constituted authority to declare it; to apply it and to safeguard it. Customs emerge spontaneously without any guide or direction. Law is consciously and out into force.
2. Law needs a special agency for enforcement; custom does not: law is applied by a special agency for the application; it is enforced by spontaneous social actions. No physical penalty visits a violator of custom; whereas punishment is meted out to one who violates the law.
3. Law is specific; custom is not: Law is specific, definite, and clear: One can know what the laws of the land are. Customs are not definite and clear. They are codified in a single book so that it becomes difficult to know all the customs of the land.
4. Law is more flexible and adaptable than customs: Law can readily adjust itself to changing conditions, whereas customs cannot be readily changed. Customs are relatively fixed and permanent. In the time of crisis, a law can be immediately enacted to meet the emergency.
5. Customs fade and disappear without formal abolition and without recognition by any authority, but laws disappear only when they are abolished by any authority.
6. Law is more idealistic than custom: Law tends to be more idealistic than customs. It is the offspring of mind and directed to an aim which is far above the actual practice of society, custom is the product of experience and mainly concerned with the daily routine

of life. Law reforms those customs which are out of tune with changing the harmony of the society.

7. Law generally deals with matters which are vital to the life of society; whereas the subject matter of custom is more ordinary and familiar.

Though law is different from custom; it does not mean, however, that they are completely poles apart. Both customs and law complement and supplement each other. Activities which are once performed unconsciously are now consciously and deliberately formulated. According to **Maine**, there is always a necessity for law to adjust itself to social needs and social opinion. When a law expresses the moral consensus of society it will be effectively enforced.

Customs are more important than law and upon them in great measure, law depends. The law touches us but here and there, customs are what vex or sooth, corrupt or purify, exalt or debase, barbarize or refine us by constant, steady, uniform, insensible operation, like that of air we breathe in. Customs consolidate law and facilitate its practice: If law is not aided by custom, it cannot succeed. Certainly a law cannot succeed permanently if it is opposed by deep seated customary attitudes.

Just as custom supplement law, so law also supplements custom: Law functions as an educator. It creates a moral consensus where none exists. Today law is being used to change obsolete customs like untouchability, dowry system, child marriage, etc. In the primitive society customs served to regulate the conduct of life, but in modern societies, customs become blurred.

Today law takes an even larger part in social control because:

1. Customs lack an agency of authoritative jurisdiction due to which the interests of the community do not remain fully secure. Law with a special agency of enforcement is required if interests are to be pursued in peace.
2. Custom is non adaptable to changing condition
3. Since there are different customs for different groups there has to be a single and uniform rule of behaviour where it is desirable, it is necessary to supplement customs by law.

PRIMITIVE VS MODERN LAW

In his 1893 work *The Division of Labour in Society*, Durkheim examined how social order was maintained in different types of societies. He focused on the division of labour, and examined how it differed in traditional societies and modern societies.

He argued that traditional societies were '*mechanical*' and were held together by the fact that everyone was more or less the same, and hence had things in common. In traditional societies, argues Durkheim, the *collective consciousness* entirely subsumes individual consciousness-social norms are strong and social behaviour is well-regulated.

In modern societies the highly complex division of labour resulted in '*organic*' solidarity. Different specialisations in employment and social roles created dependencies that tied people to one another, since people no longer could count on filling all of their needs by themselves. In '*mechanical*' societies, for example, subsistence farmers live in communities which are self-sufficient and knit together by a common heritage and common job. In modern '*organic*' societies, workers earn money, and must rely on other people who specialise in certain products (groceries, clothing, etc.) to meet their needs.

The result of increasing division of labour is that individual consciousness emerges distinct from collective consciousness-often finding itself in conflict with collective consciousness. Durkheim also made an association of the kind of solidarity in a given society and the preponderance of a law system.

He found that in societies with mechanical solidarity the law is generally repressive: the agent of a crime or deviant behaviour would suffer a punishment that in fact would restore collective conscience neglected by the crime-the punishment acts more to preserve the unity of consciences. On the other hand, in societies with organic solidarity the law is generally restitutive: it aims not to punish, but instead to restitute/restore normal activity of a complex society. The rapid change in society due to increasing division of labour thus produces a state of confusion with regard to norms and increasing impersonality in social life, leading eventually to relative normlessness, i.e. the breakdown of social norms regulating behaviour; **Durkheim labels this state as '*anomie*'.**

PRIMITIVE LAW	MODERN LAW
The growth of law is slow, gradual and spontaneous with the usages, custom, sanctions and force. We do not find legislation in primitive societies.	Modern law is a result of deliberate planning and legislation.
Primitive law is based more on kinship bonds than on territorial ties.	Modern law is based on territorial ties.
Primitive law is predominantly a criminal law	Modern law includes criminal law, civil law and their several branches.
Primitive law is based on ethical norms and public opinion.	Modern law does not necessarily depend on ethical norms and public opinion.
Primitive law does not distinguish between crimes in public and private wrongs.	Modern law differentiates between public and private wrongs.
Sin and supernatural punishments are associated with primitive law.	Modern law does not give importance for sin and supernatural punishment.
Intention is not recognized in primitive law.	Modern law recognizes whether a particular act was committed with an intention or not.
As primitive law is based on kinship bonds, collective responsibility is associated with it.	In modern law, state looks after law and therefore there is no scope for collective responsibility.
In primitive law, there are no grades of punishments.	In modern law there are grades of punishments.
Imprisonment is rare in primitive law.	Imprisonment is frequent in modern law
Primitive law is not associated with legislative, executive and judicial processes	Modern law is associated with legislative, executive and judicial processes.
There are no police force and law courts in primitive law.	In modern law we find police force, courts and lawyers.

Differences between Primitive Law And Modern Law

Previous Year Questions From Unit 4:

1. Discuss the mechanism of social control in different kinds of political systems. (2022)
2. How do political organisations of simple societies establish power , authority and legitimacy ? (2021)